

Court No. - 39

Case :- WRIT - C No. - 49296 of 2017

Petitioner :- Sri Chandra Pratap Singh

Respondent :- U.P. Power Corporation Ltd. And 6 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Amrendra Nath
Singh, Suman Kumar Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

Dr. S.K. Yadav, learned counsel for the respondents prays for
and is granted a weeks time to seek instructions in the matter.

Place this petition as fresh on 2 November 2017.

Order Date :- 25.10.2017

NSC

(Dilip Gupta, J.)

(Jayant Banerji, J.)

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Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Suman Kumar Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

This petition seeks the direction upon the respondent-Kanpur Electricity Supply Company Limited (hereinafter referred to as 'the KESCO') to restore the electric connection of 2 KW that had been disconnected on 14 October 2017.

Time was given to Sri S.K. Yadav, learned counsel for the respondent-KESCO to seek instructions in the matter. Learned counsel has placed the instructions given by the department.

It is pointed out by the learned counsel for the petitioner that a domestic electric connection of 2 KW was provided to the petitioner on 19 July 2001. The petitioner had been regularly paying the bills and in paragraph 12 of the writ petition, it has been stated that an amount of Rs. 16390/- for the period 30 September 2005 till 29 March 2010 was deposited by the petitioner. A receipt has also been enclosed as Annexure-6 to the writ petition. It has further been stated that on 19 August 2017, the domestic electric connection of the petitioner was disconnected and subsequently the petitioner deposited a sum of Rs. 1,50,000/- by cheque on 27 August 2017. The petitioner was asked by

the Executive Engineer to submit an application for a fresh electric connection which was subsequently granted on 27 August 2017. Thereafter, a bill dated 12 October 2017 was issued to the petitioner for an amount of Rs. 1,93,455/- with due date as 19 October 2017 and disconnection date as 26 October 2017. In paragraph 19 of the writ petition, it has also been stated that the respondent took a cheque of Rs. 2,00,000/- under pressure which amount was given by the petitioner by a cheque. However, the electric connection was disconnected on 14 October 2017.

Sri Ranjeet Saxena, learned counsel for the petitioner has submitted that the electric connection of the petitioner could not have been disconnected on 14 October 2017 when the due date mentioned in the bill was 19 October 2017 and disconnection date was 26 October 2017. It is his submission that without issuance of any bill to the petitioner, the respondents demanded certain money and the petitioner deposited Rs. 1,50,000/-. Learned counsel for the petitioner further submitted that the payment of Rs. 2,00,000/- by cheque which was dishonoured has nothing to do with the disconnection.

On the other hand, Dr. S.K. Yadav, learned counsel for the department has submitted that for a long period from March 2010 till August 2017, the petitioner had not deposited any amount towards the consumption of electricity. It was on 17 August 2017 that the premises of the petitioner were inspected and the petitioner was asked to produce documents to show that payments of the bills had been

made. The petitioner, however, requested that the one day time may be granted to produce the bills and receipts and on the next date the petitioner produced receipt for the period from 30 September 2005 till 29 March 2010 regarding payment of Rs. 16,390/-. It has also been pointed out that the petitioner had consumed 6298 units of electricity during this period from March 2010 till August 2017 for which a bill for an amount of Rs. 3,56,158/- was given to the petitioner. This did not include the interest amount as the petitioner had stated that he would make payment of the entire amount. The petitioner, thereafter, submitted an application with two cheques. The first cheque dated 25 August 2017 was for Rs. 1,50,000/- and the other post dated cheque was for Rs. 2,00,000/-. The instructions mention that the first cheque for Rs. 1,50,000/- was honoured and the second cheque for Rs. 2,00,000/- was not honoured because of the instructions given by the petitioner to the Bank to "stop payment". It has also been stated that it is on the request of the petitioner, that a new meter was installed on 27 August 2017 but no fresh connection was provided to the petitioner. Even thereafter the petitioner consumed 1133 units of electricity in 48 days. Learned counsel for the respondent has stated that the electric connection was disconnected on 14 October 2017 for the reason that the second cheque of Rs. 2,00,000/- was dishonoured.

Learned counsel has also pointed out that in the Bill dated 12 October 2017, on which reliance has been placed by the learned counsel for the petitioner, also shows the last payment amount as Rs.

2,00,000/-, which was by cheque, but the cheque was dishonoured because of the instructions given by the petitioner to the Bank to stop the payment.

We have considered the submissions advanced by the learned counsel for the parties.

On repeated queries put to the learned counsel for the petitioner to apprise the Court whether any amount was paid by the petitioner towards the consumption of electricity from March 2010 till August 2017, all that has been submitted by the learned counsel for the petitioner is that no amount was deposited since bills were not issued to the petitioner. It is, therefore, a fact that the petitioner did not make payment for consumption of electricity for a long period from March 2010 till August 2017. This fact has also been noted in the instructions given by the department to the learned counsel for the respondents. They state that no amount has been paid and 68295 units of electricity had been consumed during this period.

It transpires from the records of the writ petition that after inspection, a Bill was prepared and the petitioner in his own handwriting, a copy of which has been placed before the Court, clearly stated that he would make the payment of Rs. 3,56,158/- in installments by two cheques which he had enclosed with the application. The first cheque dated 25 August 2017 was for Rs. 1,50,000/- while other cheque dated 31 August 2017 was for Rs. 2,00,000/-. The petitioner was aware that he had to make payment of

the bills for the consumption of electricity from March 2010 till August 2017 and that is why when the bill for Rs.3,56,158/- was presented to the petitioner, he moved an application seeking time to deposit the entire amount in two installments. What is to be noted is that whereas the first cheque for Rs. 1,50,000/- was honoured but the second cheque for Rs. 2,00,000/- was not honoured because of the instructions given by the petitioner to the Bank to "stop payment". The respondent was, therefore, justified in disconnecting the electric supply of the petitioner when the second cheque for Rs. 2,00,000/- was dishonoured. The petitioner has, very conveniently, not stated in the writ petition that any payment was made for consumption of electricity for a long period from March 2010 till August 2017. The petitioner initially managed to avoid the disconnection of the electricity by submitting two cheques but for reasons best known to the petitioner he instructed to his bank to "stop payment" of the second cheque.

In such circumstances, it is not possible to accept the contention of the learned counsel for the petitioner that the payments were not made from the March 2010 to August 2017 for the reason that bills had not been raised by the department nor is it possible to accept the contention of the learned counsel for the petitioner that the petitioner submitted two cheques under some coercion. An amount of Rs. 3,56,158 was required to be paid by the petitioner and that is why the petitioner had submitted an application with two cheques.

Learned counsel for the petitioner also submitted that the provisions of the U.P. Electricity Supply Code, 2005 have not complied with inasmuch as bill dated 12 October 2017 mentioned the date of disconnection as 26 October 2017 but the electric supply was disconnected even before the date on 14 October 2017.

As noticed above, the electricity supply was disconnected because the cheque of Rs. 2,00,000/- was dishonoured. The bill, on which reliance has been placed by the petitioner did mention the last payment of Rs. 2,00,000/-. If the cheque for this amount which the petitioner had deposited was dishonoured, the department cannot be said to be at fault in disconnecting the electric supply of the petitioner.

There is, therefore, no merit in this writ petition. The writ petition is, accordingly, dismissed.

Order Date :- 2.11.2017

Akram

(Dilip Gupta,J.)

(Jayant Banerji,J.)

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Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Amrendra Nath
Singh, Suman Kumar Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

As prayed, list on 31 January 2018.

Order Date :- 23.1.2018

A. V. Singh

(Dilip Gupta, J.)

(Jayant Banerji, J.)

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Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Amrendra Nath
Singh, Suman Kumar Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

The case has been called out in the revised list but the learned counsel for the respondents have not appeared.

List on 15 February 2018.

Order Date :- 31.1.2018

sfa/

(Dilip Gupta, J)

(Jayant Banerji, J)

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Petitioner :- Sri Chandra Pratap Singh

Respondent :- U.P. Power Corporation Ltd. And 6 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Suman Kumar Yadav

Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

Order on Review application.

This review application has been filed for review of the judgement and order dated 2 November 2017.

It transpires that the electric connection of the petitioner was disconnected on 19 August 2017 for the reason that against the dues of Rs. 3,50,158/, the petitioner had submitted two cheques. The first was dated 25 August 2017 and was for Rs. 1,50,000/ which was honoured but the second cheque dated 31 August 2017 for Rs. 2,00,000/ was dishonoured for the reason that the petitioner had instructed the Bank to "stop payment". It also transpires that the petitioner had not made any payment of consumption of electricity for a long period from March 2010 to August 2017.

What has been submitted by Sri Ranjit Saxena, learned counsel for the applicant is that the application that was placed before the Court that the petitioner would make payment of Rs. 3,50,000/, was a forged document.

Without expressing any opinion as to whether the document submitted by the respondent was a forged document or not, it does appear from the record that two cheques were actually submitted by the petitioner. The first was honoured but second cheque was dishonoured as the writ-petitioner instructed the Bank not to make payment. Once the cheques were issued and one of which was honoured and second was dishonoured, we see no reason as to why the petitioner should assert that the application with the cheques was not submitted by the petitioner.

The review petition is without any substance. It is, accordingly rejected.

Order Date :- 25.5.2018

sfa/

(Dilip Gupta, J)

(Jayant Banerji, J)